

Tentative Rulings for June 24, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

23CECG04428 *Susan Davis v. Hyundai Motor America* is continued to Wednesday, August 5, 2026, at 3:30 p.m. in Department 403.

24CECG05167 *Michael Delgado v. Ford Motor Company* is continued to Thursday, July 16, 2026, at 3:30 p.m. in Department 403.

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Tentative Rulings for Department 403

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Tentative Ruling

Re: ***In re: Peachtree Settlement Funding, LLC***
Superior Court Case No. 26CECG00417

Hearing Date: June 24, 2026 (Dept. 403)

Motion: by Petitioner Peachtree Settlement Funding, LLC for Approval
of Transfer of Payment Rights

Tentative Ruling:

To grant.

Explanation:

The Structured Settlement Protection Act governs transfers of structured settlement payments to factoring companies for immediate cash payments. (See Ins. Code, §§ 10134 et seq.) The Act's purpose is to "protect structured settlement payees from exploitation by factoring companies." (*RSL Funding, LLC v. Alford* (2015) 239 Cal.App.4th 741, 745.) The Act provides that a transfer of structured settlement payment rights is void unless the following conditions are met:

- 1) The transfer is fair and reasonable, and in the payee's best interest, taking into account the welfare and support of the payee's dependents (Ins. Code, § 10137, subd. (a)); and
- 2) The transfer complies with the requirements of the Act, will not contravene other applicable law, and the judge has reviewed and approved the transfer (Ins. Code, § 10137, subd. (b); Ins. Code, § 10139.5.).

To determine what is fair and reasonable, and in the payee's best interest, the court is to consider the totality of the circumstances and the factors listed in Insurance Code section 10139.5, subdivision (b), including the purpose of the transfer and the payee's financial and economic situation. (Ins. Code, § 10139.5.)

The court does not believe the transfer is the best idea, given the high effective interest rate that payee would incur in selling the upcoming annuity payments, and payee's inability to change his situation following receipt of a settlement payment April 3, 2025. In Mr. Ramirez's prior petition to transfer the same two payments and the then-pending 2025 payment he stated he was unemployed and intended to use the money to purchase a vehicle and mobile home. Mr. Ramirez has since received \$75,000 and appears to have done neither of these things in the last year. However, given the length of time before the next payments, payee having been represented by counsel in the preparation for the transfer, and payee's belief that the transfer is in his best interests, the court will reluctantly approve the petition.

Accordingly, the court finds, based on payee's articulated plan and reasons for the transfer, that the transfer of the annuity payment rights is fair and reasonable, and in payee's best interest.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** 6/23/26.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Santos v. Palogix International Limited***
Superior Court Case No. 24CECG03568

Hearing Date: June 24, 2026 (Dept. 403)

Motion: Cross-Defendant J Delgadillo Trucking, Inc.'s Demurrer to the Cross-Complaint

Tentative Ruling:

To overrule the demurrer, with cross-defendant J Delgadillo Trucking, Inc. granted 10 days' leave to file its answer to the cross-complaint. The time in which the answer can be filed will run from service by the clerk of the minute order.

Explanation:

The function of a demurrer is to test the sufficiency of a pleading by raising questions of law. (*Plumlee v. Poag* (1984) 150 Cal.App.3d 541, 545.) The test is whether a plaintiff has succeeded in stating a cause of action; the court does not concern itself with the issue of a plaintiff's possible difficulty or inability in proving the allegations of the complaint. (*Highlanders, Inc. v. Olsan* (1978) 77 Cal.App.3d 690, 697.) In assessing the sufficiency of the complaint against the demurrer, we treat the demurrer as admitting all material facts properly pleaded, bearing in mind the appellate courts' well established policy of liberality in reviewing a demurrer sustained without leave to amend, liberally construing the allegations with a view to attaining substantial justice among the parties. (*Glaire v. LaLanne-Paris Health Spa, Inc.* (1974) 12 Cal.3d 915, 918.)

Negligence

To plead negligence, a cross-complaint must allege the existence of a duty of care, breach of that duty, causation, and damages arising from said breach. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213; *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.) Foreseeability of harm is a factor when considering the issue of duty. (*Bily v. Arthur Young & Co.*, *supra*, 3 Cal.4th 370 at p. 398.) Here, the cross-complaint alleges that defendant J Delgadillo Trucking (hereinafter "JDT") is the trucking company that hired plaintiff or plaintiff's company DJT Transport, Inc. to pick up bins at the Palogix facility. (Cross-complaint, ¶ 2.) The cross-complaint alleges, "Cross-defendants owed a duty to Palogix to make sure their drivers were adequately trained to follow basic safety protocol and to ensure that all persons on the site followed said protocols as set forth above." (Cross-complaint, ¶ 10.) These allegations are sufficient.

Additionally, JDT primarily argues the merits of the claims alleged in the cross-complaint. This is not the proper purpose of a demurrer. In a demurrer, the court is not assessing the validity, veracity, or severity of a cross-complainant's claims. Rather, the

court is assessing whether sufficient facts are pled for each element required in a given cause of action.

Furthermore, new arguments were made in the reply. The court may disregard new arguments made for the first time in a reply brief. (*Balboa Ins. Co. v. Aguirre* 1983) 149 Cal.App.3d 1002, 1010.) Of note, the new arguments made in the reply rely heavily on a discussion of the merits and cite solely to cases which were addressing summary judgment, not demurrer.

The Court overrules the demurrer with regard to the negligence cause of action.

Indemnity/Apportionment

California law regarding equitable indemnity permits "concurrent tortfeasor[s] to obtain partial indemnity from other concurrent tortfeasors on a comparative fault basis." (*American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 591.) It is available where multiple tortfeasors are "responsible for the same indivisible injury". (*Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1176-1177.) This is to provide restitution so that an otherwise jointly liable person is not "unjustly enriched at the expense of another when the other discharges liability that it should be his responsibility to pay." (*Children's Hospital v. Sedgwick* (1996) 45 Cal.App.4th 1780, 1786.) A failure by an underlying plaintiff to sue the cross-defendants does not necessarily prohibit a claim against cross-defendants. (*BFGC Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 853.) Here, the cross-complaint alleges facts that JDT's conduct contributed to plaintiff's injuries. (Cross-complaint, ¶¶ 2, 10.) Plaintiff's failure to name JDT in the underlying complaint is not a basis for demurrer here.

The Court overrules the demurrer with regard to the indemnity/apportionment cause of action.

Uncertainty

A party may object by demurrer to any pleading on the ground that it is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) As used in this subdivision, 'uncertain' includes ambiguous and unintelligible." (*Ibid.*) Demurrers for uncertainty are disfavored. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) A demurrer for uncertainty may be sustained when the complaint is drafted in a manner that is so vague or uncertain that the defendant cannot reasonably respond, e.g., the defendant cannot determine what issues must be admitted or denied, or what causes of action are directed against the defendant. (*Ibid.*) Demurrers for uncertainty are appropriately overruled where "ambiguities can reasonably be clarified under modern rules of discovery." (*Ibid.*)

The cross-complaint alleges that JDT is the trucking company that hired cross-defendant Santos and/or his company DJT Transport, Inc. to pick up bins at Palogix's facility. (Cross-complaint, ¶¶ 2-4.) The cross-complaint alleges failure to train drivers and that a particular driver, Santos, failed to follow safety protocol by standing near the truck while it was being loaded. (*Id.* at ¶ 7.) As such, uncertainty does not provide a basis for demurrer here.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/23/26.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***In Matter of Perez***
Superior Court Case No. 26CU01095

Hearing Date: June 24, 2026 (Dept. 403)

Motion: Petition to compromise minor's claim

Tentative Ruling:

To grant. Order signed. No appearances necessary.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/23/26.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***In the Matter of Isaiah John***
Superior Court Case No. 26CU01037

Hearing Date: June 24, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny, without prejudice, the petition to approve the compromised claim of minor Isaiah John. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

The petition submitted by petitioner seeks approval of the settlement of the personal injury claim of minor Isaiah John ("minor") against Jon Mitchell, by and through his insurer, GEICO General Insurance Company. There are many issues within the petition that prevent approval.

The petition must be on form MC-350, verified by the petitioner and include all information having bearing on the reasonableness of the compromise. (Cal. Rules of Court, rule 7.950; Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

To assess the reasonableness of the compromise, information about the nature and circumstances of the vehicle collision must be stated. Here, Items 4 and 5 only state the location of the collision. The court requests these Items include a more detailed explanation such that the court can assess how the incident potentially affected the minor.

Minor's address is incomplete in Item 2a, the court requests that this item be corrected.

The petition at Item 7 indicates the minor was evaluated by Kaiser Permanente. There is not an attachment to the petition, such as Attachment 8, to reflect a diagnosis or prognosis provided on April 4, 2026. Further, there is no affirmative representation, either by attachment or indicated by Item 8, that the minor no longer has a neck strain or sprain, which has been listed as an injury caused by the accident. Item 8 must be completed and supporting medical records must be attached as Attachment 8.

The petition indicates that the settlement of \$60,000 is to be apportioned unequally to the three plaintiffs. The petition does not include Attachment 11b(6) stating the reasons for the apportionment in this manner. In addition, Items 11b(2) and 11b(3) are incomplete. The court requests that the forgoing items in the petition be completed and supporting documentation be attached.

The medical expenses to be paid from the settlement indicate Kaiser Permanente has agreed to accept the reduced amount of \$2,557.45 to satisfy the \$4,373.00 billed. (Petrn. 12b(5)(b)(i).) No written evidence of the negotiated reduction has been provided to support the payment of \$2,557.45 from the settlement. As such, evidence of the agreed reduction is requested.

Item 17 of the petition is incomplete, and must be completed.

Most significantly, the petition failed to request a method of disposition of the balance of minor's proceeds from the settlement. Item 18 of the petition must be completed and the information of the receiving financial institution must be provided. Likewise, Items 1, 4 through 6, and 8 through 10 of the proposed order (MC-351) must be completed. Additionally, the proposed Order to Deposit Funds into Blocked Account (MC-355) filed with the court was incomplete. If the petitioner requests the funds be deposited in a blocked account, a completed MC-355 form is requested.

Lastly, the amended complaint must be verified with the petitioner's signature and date the petition was signed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/23/26.
(Judge's initials) (Date)